

25TRCV00388 25TRCV00388

County: los-angeles

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Case Number: 25TRCV00388 Hearing Date: July 29, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JORGE LOPEZ VILLALOBOS

;

Plaintiff,

vs.

COSTCO WHOLESALE

CORPORATION

;

Defendant.

Case

No.:

25TRCV00388

Hearing

Date:

July
29, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

defendant

COSTCO WHOLESALE CORPORATION'S MOTION FOR PROTECTIVE ORDER

(2)

DEFENDANT

COSTCO WHOLESALE CORPORATION'S REQUEST FOR MONETARY SANCTIONS

(3)

PLAINTIFF

Jorge Lopez Villalobos' request for monetary sanctions

MOVING PARTY: Defendant,

Costco Wholesale Corporation

RESPONDING PARTY: Plaintiff, Jorge Lopez Villalobos

(1)

Defendant

Costco Wholesale Corporation's Motion for Protective Order is DENIED pursuant to Code of Civil Procedure sections 2025.420 and 2031.060.

(2)

Defendant

Costco Wholesale Corporation's Request for Monetary Sanctions is DENIED pursuant to Code of Civil Procedure sections 2023.010 and 2025.420.

(3)

Plaintiff

Jorge Lopez Villalobos' Request for Monetary Sanctions is GRANTED pursuant to Code of Civil Procedure sections 2023.010, 2023.030, and 2025.420.

The Court considers the moving papers filed on April 22, 2026, the opposition brief filed on June 9, 2026, and the reply brief filed on June 12, 2026.

BACKGROUND

Factual Background

On February 4, 2025, plaintiff Jorge Lopez Villalobos ("Plaintiff") filed the Complaint against defendants Costco Wholesale Corporation ("Defendant") and DOES 1 through 25. The Complaint includes two causes of action: (1) Premises Liability and (2) General Negligence.

On March 13, 2025, Plaintiff filed an amendment to the complaint, adding Johanna Diaz as a defendant.

On April 14, 2025, Plaintiff served Defendant with a series of discovery requests, including form interrogatories, thirty-five (35) special interrogatories, thirty-five (35) requests for admission, and sixty-five (65) requests for production. (Declaration of Jessica Ortega ("Ortega Decl."), ¶ 3.) Defendant subsequently responded and provided supplemental responses on April 10, 2026. (Ortega Decl., ¶¶ 4-5.) Furthermore, Defendant consented to produce certain documents, contingent upon a protection order. (Ortega Decl., ¶ 6.)

On April 3, 2026, Plaintiff served Defendant with the Notice of Taking Deposition of Costco Wholesale Corporation's Employee Person Most Qualified ("PMQ") and Notice for Production of Documents at Deposition, scheduling the deposition for April 16, 2026. (Ortega Decl., ¶ 7, Exh. 1.) This deposition notice comprised fifty (50) categories and thirty-two (32) requests for the production of documents. (Ortega Decl., ¶ 7, Exh. 1.)

On April 10, 2026, Defendant's counsel issued a meet-and-confer letter to Plaintiff's counsel to address perceived deficiencies or unreasonable requests related to the categories and document requests. (Ortega Decl., ¶ 9,

Exh. 2.) On April 13, 2026, Defendant served an objection to the deposition notice, outlining its reasoning. (Ortega Decl., ¶ 10, Exh. 3.)

On the same day, Plaintiff's counsel responded to the meet-and-confer letter, arguing that Defendant's objections were meritless and boilerplate.

(Ortega Decl., ¶ 11, Exh. 4.)

Additionally, Plaintiff requested that Defendant specify which categories it was willing to designate a PMQ for and which it would not. (Ortega Decl., ¶ 11, Exh. 4.)

On April 14, 2026, Defendant's counsel responded, indicating that they felt compelled to file this motion, as Plaintiff's counsel had characterized their objections as meritless and boilerplate without offering any proposal to limit the scope of the deposition categories to those pertinent to the case.

(Ortega Decl., Exh. 4.)

On April 15, 2026, Plaintiff's counsel responded, expressing Plaintiff's willingness to continue the deposition and to divide it into multiple sessions, contingent upon mutual agreement. (Declaration of Avetis Nalbandyan ("Nalbandyan Decl."), ¶¶ 11-12, 14, Exh. B.) Additionally, Plaintiff's counsel reiterated the request for Defendant to clarify which categories it intended to produce a witness for and which categories it contested.

(Nalbandyan Decl., ¶¶ 13-14, Exh. B.)

However, Defendant's counsel did not provide a response and instead served this motion on April 15, 2026.

(Nalbandyan Decl., ¶¶ 15, 17, Exh. C.)

On May 20, 2026, the parties executed a Stipulation and Protective Order.

(Nalbandyan Decl., ¶¶ 19-20, Exh. D.)

Subsequently, the Court signed the stipulation on June 26, 2026.

LEGAL STANDARD

"Any party may obtain discovery ... by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (Code Civ. Proc., § 2025.010.)

Protective orders are authorized by several code sections. A protective order may be issued under Code of Civil Procedure section 2025.420 to prevent or otherwise limit the scope and means of taking a deposition. The court may issue a protective order upon a showing of good cause, such as to prevent unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (Code Civ. Proc., § 2025.420, subd. (b).) To establish good cause, the party seeking the protective order must show that the burden involved in the deposition proceeding outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. (Emerson v. Electric Co. v. Superior Court (1997) 16 Cal.4th 1101, 1110.) Finally, prior to making such a motion, the moving party must attempt to informally resolve the issue and attach a declaration pursuant to Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2025.420, subd. (a).)

Additionally, “[t]he court shall restrict the frequency or extent of use of a discovery method provided in Section 2019.010 if it determines either of the following: ¶ (1) The discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive. ¶ (2) The selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.” (Code Civ. Proc., § 2019.030, subd. (a).) “The court may make these determinations pursuant to a motion for a protective order by a party or other affected person. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2019.030, subd. (b).)

Sanctions are mandatory against the party or attorney who unsuccessfully makes or opposes a motion for a protective order unless the party acted with substantial justification or the circumstances make imposition of sanctions unjust. (Code of Civ. Proc. §§ 2019.030, subd. (c), 2025.420 subd. (h).) The unsuccessful party bears the burden of demonstrating substantial justification. (Doe v. United States Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) A motion or opposition is substantially justified where it is grounded in both law and fact. (Padron v. Watchtower Bible & Tract Society of New York, Inc. (2017) 16 Cal. App. 5th 1246, 1269.)

Furthermore, under Code of Civil Procedure section 2023.030, subdivision (a), "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2023.030, subd. (a).) "Misuses of the discovery process include ... ¶ (d) Failing to respond or to submit to an authorized method of discovery. ... ¶ (h) Making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery. ¶ (i) Failing to confer or to attempt to confer, in person, by telephone, or by videoconference with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made." (Code Civ. Proc., § 2023.010, subs. (d), (h)-(i).)

MEET AND CONFER REQUIREMENT

Defendant was required to meet and confer with Plaintiff before filing this motion. (Code Civ. Proc., §§ 2019.030, subd. (b), 2025.420, subd. (a).) Code of Civil Procedure section 2016.040 states that a meet and confer declaration "in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.) "The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there

be a 'sincere' effort to resolve the matter.'"

(In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On April 10, 2026, Defendant's counsel issued a meet-and-confer letter to Plaintiff's counsel to address perceived deficiencies or unreasonable requests related to the categories and document requests. (Ortega Decl., ¶ 9, Exh. 2.) On April 13, 2026, Defendant served an objection to the deposition notice, outlining its reasoning. (Ortega Decl., ¶ 10, Exh. 3.)

On the same day, Plaintiff's counsel responded to the meet-and-confer letter, arguing that Defendant's objections were meritless and boilerplate. (Ortega Decl., ¶ 11, Exh. 4.) Additionally, Plaintiff requested that Defendant specify which categories it was willing to designate a PMQ for and which it would not. (Ortega Decl., ¶ 11, Exh. 4.)

On April 14, 2026, Defendant's counsel responded, indicating that they felt compelled to file this motion, as Plaintiff's counsel had characterized their objections as meritless and boilerplate without offering any proposal to limit the scope of the deposition categories to those pertinent to the case. (Ortega Decl., Exh. 4.)

On April 15, 2026, Plaintiff's counsel responded, expressing Plaintiff's willingness to continue the deposition and to divide it into multiple sessions, contingent upon mutual agreement. (Nalbandyan Decl., ¶¶ 11-12, 14, Exh. B.) Additionally, Plaintiff's counsel reiterated the request for Defendant to clarify which categories it intended to produce a witness for and which categories it contested. (Nalbandyan Decl., ¶¶ 13-14, Exh. B.) However, Defendant's counsel did not provide a response and instead served this motion on April 15, 2026. (Nalbandyan Decl., ¶¶ 15, 17, Exh. C.)

The Court finds that Defendant did not adequately meet and confer. While the Court observes a somewhat antagonistic relationship between counsel based on their emails, Defendant made no genuine effort to discuss their objections to the categories and the production of documents beyond the initial meet-and-confer letter. Plaintiff made two requests for Defendant to

clarify which categories it intended to designate a witness for and which categories were disputed. Defendant, however, did not respond to these inquiries.

Moreover, Defendant asserts that it felt obligated to file this motion because Plaintiff's counsel characterized its objections as meritless and boilerplate, without providing a proposal to limit the deposition categories to those relevant to the case. Despite this, Defendant objected to the categories and did not offer any categories for which it was willing to present a PMQ. Consequently, the Court finds that the Defendant did not engage in good faith discussions with Plaintiff prior to the filing of this motion.

As such, the Defendant's motion and request for sanctions is DENIED.

Plaintiff's Request for Monetary Sanctions

Plaintiff requests a total of \$3,600.00 in sanctions to compensate for attorney's fees incurred in opposing the motion. (Opp., pp. 17:11-18:15; Nalbandyan Decl., ¶ 33.) This request is made pursuant to Code of Civil Procedure sections 2023.010, 2023.030, and 2045.420. (Opp., pp. 17:12-18:10.)

The request is supported by a declaration from Plaintiff's counsel, Avetis Nalbandyan. In the declaration, Nalbandyan states that their hourly rate is \$450.00 and that they devoted 6.0 hours to drafting the opposition brief. (Nalbandyan Decl., ¶ 33.) Furthermore, Nalbandyan anticipates needing another 2.0 hours to review the reply and attend the hearing. (Nalbandyan Decl., ¶ 33.)

Here, the imposition of sanctions is not unjust. The Defendant acted without substantial justification as discussed above. Therefore, Plaintiff's request for sanctions against Defendant is GRANTED. The Court finds that the requested amount of \$3,600.00 is warranted.

ORDERS

1)

Defendant

Costco Wholesale Corporation's Motion for Protective Order is DENIED.

2)

Defendant

Costco Wholesale Corporation's Request for Monetary Sanctions is DENIED.

3)

Plaintiff

Jorge Lopez Villalobos' Request for Monetary Sanctions is GRANTED.

4) Defendant

Costco Wholesale Corporation shall pay Plaintiff's counsel \$3,600.00 on or before August 29, 2026.

5)

Defendant

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 29, 2026

Tamara

Hall

Judge

of the Superior Court